

23STCV28522 23STCV28522

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DEFENDANT DORON SHAULY'S MOTION FOR PROTECTIVE ORDER;
DEFENDANT ALON WEST HILLS, LLC'S MOTION FOR PROTECTIVE ORDER; PLAINTIFF'S (3) MOTIONS
TO DEEM REQUESTS FOR ADMISSION ADMITTED; PLAINTIFF'S (2) MOTIONS TO COMPEL
DISCOVERY RESPONSES.

NOTICE: OK.

RULING:

1. Defendant

Doron Shauly's Motion for Protective Order filed on March 27, 2026 (Reservation ID No. 157011767841) is GRANTED IN PART.

2. Defendant

Alon West Hills, LLC's Motion for Protective Order filed on April 7, 2026 (Reservation ID No. 260053596262) is GRANTED IN PART.

3. Plaintiff's

Motion to Deem Requests for Admission Admitted against Defendant Alon Investments, LLC filed on May 8, 2026 (Reservation ID No. 406122025435) is GRANTED.

4. Plaintiff's

Motion to Deem Requests for Admission Admitted against Defendant Walter Florida filed on May 8, 2026 (Reservation ID No. 693289833297) is GRANTED.

5. Plaintiff's

Motion to Deem Requests for Admission Admitted against Defendant Iris Shapiro filed on May 8, 2026 (Reservation ID No. 699761278200) is GRANTED.

6. Plaintiff's

Combined Motion to Compel Special Interrogatories and Requests for Production against Defendants Iris Shapiro, Alon Investments, LLC, and Walter Florida filed on May 14, 2026 (Reservation ID No. 240756720520) is GRANTED.

7. Plaintiff's

Combined Motion to Compel Form Interrogatories against Defendants Alon Investments, LLC and Walter Florida filed on June 15, 2026 (Reservation ID No. 202871463330) is GRANTED.

BACKGROUND

On November 17, 2025, Plaintiff Elly-Joy Shalomé Kaushansky (Plaintiff) filed the operative First Amended Complaint against Defendants Alon West Hills, LLC (Alon West Hills), Alon Investments, LLC (Alon Investments), Iris Shapiro (Shapiro), Doron Shauly (Shauly), and Walter Florida (Florida), alleging fifteen causes of action. (FAC, p. 1.)

On June 26, 2026, the Court continued trial to August 16, 2027 and preserved the pending discovery motions and any compliance ordered as a result of those motions. Nonexpert discovery otherwise remained closed. (6/26/26 Minute Order.) On June 29, 2026, the Court continued Shauly's and Alon West Hills' protective-order motions for further meet and confer and denied without prejudice the joinder by Shapiro, Alon Investments, and Florida. (6/29/26 Minute Order.) Shapiro, Alon Investments, and Florida subsequently served responses to the discovery at issue. (Early Decl. filed 9/3/26, ¶ 7.)

DISCUSSION

Motions for Protective Order

When specially prepared interrogatories or requests for admission exceed 35 and the responding party challenges the number by

protective order, the propounding party bears the burden of justifying the additional requests. (Code Civ. Proc., §§ 2030.040, subd. (b), 2033.040, subd. (b).) There is no corresponding numerical limit on Requests for Production. The Court shall restrict the frequency or extent of discovery if it determines that the discovery is unreasonably cumulative or duplicative or that the selected method is unduly burdensome or expensive. (Code Civ. Proc., § 2019.030, subd. (a).) For good cause shown, the Court may reduce the number of interrogatories or admission requests, excuse production of particular items or categories, and extend the time to respond. (Code Civ. Proc., §§ 2030.090, subd. (b), 2031.060, subd. (b), 2033.080, subd. (b).)

Plaintiff served Defendant Shauly with Discovery Set Two consisting of 382 Special Interrogatories, 269 Requests for Production, and 280 Requests for Admission. (Do Decl., ¶ 4.) Plaintiff served Defendant Alon West Hills with Discovery Set Two consisting of 382 Special Interrogatories, 269 Requests for Production, and 127 Requests for Admission. (Spivey Decl., ¶¶ 3-6.)

The quantity and complexity of the issues warrant discovery beyond the statutory limit of 35. Plaintiff has not, however, justified the number of Special Interrogatories and Requests for Admission actually served. The record also reflects substantial overlap among the Requests for Production and between the present and prior discovery. The Court previously afforded the parties an additional opportunity to narrow the requests. Plaintiff continued to maintain all of the discovery directed to Shauly. (Joint Statement, pp. 3-4, 7.) Plaintiff likewise maintained all discovery directed to Alon West Hills. (Status Report, p. 2.)

The Motions are therefore granted in part. As to Defendant Shauly, Plaintiff may pursue 150 Special Interrogatories, 100 Requests for Admission, and 100 Requests for Production from Discovery Set Two. As to Defendant Alon West Hills, Plaintiff may separately pursue 150 Special Interrogatories, 100 Requests for Admission, and 100 Requests for Production from Discovery Set Two.

Within 30 days, Plaintiff shall identify by number a separate selection for each Defendant consisting of the 150 Special Interrogatories, 100 Requests for Admission, and 100 Requests for Production she elects to pursue from that Defendant's Discovery Set Two. Plaintiff may not substitute new requests or revise their wording.

Shauly and Alon West Hills shall each serve code-compliant responses within 60 days after service of Plaintiff's respective selection and shall concurrently produce all responsive documents required by their responses to the selected Requests for Production. The 60-day period is warranted by the volume of discovery that remains after reduction, the document collection and review required by the selected production demands, and the August 16, 2027 trial date. (Code Civ. Proc., §§ 2030.090, subd. (b)(3), 2031.060, subd. (b)(2), 2033.080, subd. (b)(3).)

Shauly and Alon West Hills filed their Motions before responses were due. The Court thereafter ordered that they were not required to respond to the March 13, 2026 discovery pending resolution of the Motions. (6/29/26 Minute Order.) Their objections therefore are not waived and may be asserted where otherwise proper.

In light of the mixed result and the parties' substantial justification for their respective positions concerning the permissible scope of discovery, the Court finds monetary sanctions unwarranted. The requests for sanctions relating to the protective-order Motions are denied.

Plaintiff's Discovery Motions Against Defendants Iris Shapiro, Alon Investments, LLC, and Walter Florida

1. Electronic Service

Defendants contend Plaintiff's March 13, 2026 discovery was not effectively served because Plaintiff electronically transmitted it to Natalya Samsonova, who had left Lewis Brisbois. The January 12, 2026 Answer identified Michael J. Early and Timothy R. Windham as counsel and listed their Lewis Brisbois email addresses. (Answer, p. 1.) The Court's March 4, 2026 electronic service certificate, however, continued to identify both Early and Samsonova as electronic service recipients for Lewis Brisbois. (3/4/26 Clerk's Certificate of Service.)

Early declares that Samsonova had left the firm and that an automatic reply to her email address stated, "This Email is NOT being monitored and has not been delivered to Natalya Samsonova, who is no longer with the firm." (Early Decl. filed 6/29/26, ¶ 8.) Plaintiff's service records reflect

transmission of the March 13 discovery to Samsonova's Lewis Brisbois address.
(5/8/26 Mots., Proofs of Service and Exs.)

A party required to accept electronic service must provide an electronic service address and promptly notify all parties and the Court of any change to that address. (Cal. Rules of Court, rule 2.251(c)(4), (g)(1).) The record does not show that Lewis Brisbois filed and served notice removing or changing Samsonova's electronic service address before March 13, 2026. The Court itself continued to use that address for electronic service while also serving Early.

On this record, the Court finds Plaintiff's March 13, 2026 electronic service effective. (Code Civ. Proc., § 1010.6; Cal. Rules of Court, rule 2.251.) The same conclusion applies to Plaintiff's May 11, 2026 service of Form Interrogatories.

Defendants did not timely respond. Their objections were therefore waived. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a), 2033.280, subd. (a).) Defendants later sought to join Shauly's and Alon West Hills' protective-order Motions, but the Court denied that request without prejudice on June 29, 2026. (6/29/26 Minute Order.) Although Defendants thereafter participated in further meet-and-confer efforts, Shapiro, Alon Investments, and Floridia did not separately notice and file motions seeking relief from the statutory waiver or protective relief. No order granting such relief has been entered.

2. Motions

to Deem Requests for Admission Admitted

Defendants' September 3, 2026 Opposition asserts that they served verified discovery responses and identifies the dates of service, but Defendants did not submit the responses themselves with the Opposition. (Early Decl. filed 9/3/26, ¶ 7.) Plaintiff submitted copies of Defendants' responses with her September 8, 2026 Reply. Because Defendants rely on those responses in arguing that the pending discovery Motions are moot, the Court considers the responses submitted with Plaintiff's Reply in determining whether they substantially comply with the governing discovery statutes.

If a party fails to timely respond to Requests for Admission, the Court shall deem the matters admitted unless, before the

hearing, the responding party serves a proposed response substantially complying with Code of Civil Procedure section 2033.220. (Code Civ. Proc., § 2033.280, subd. (c).)

Substantial compliance is determined from the proposed response as a whole. (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 779-782.) Waived objections do not necessarily prevent substantial compliance when the response otherwise contains substantive answers. (Katayama v. Continental Investment Group (2024) 105 Cal.App.5th 898, 908-910.) A proposed response containing waived objections but no substantive answers to the matters at issue may fail that standard. (Id. at p. 909, fn. 14.)

Here, Alon Investments served a response captioned as Requests for Admission, Set One, and identifying Set No. One, although its introductory paragraph and internal heading refer to “Set Three.” (Alon Investments Resp. to RFAs, pp. 1, 3.) The response provides substantive answers to Requests Nos. 1 through 35 and then asserts a single numerical objection to purported Requests Nos. 36 through 310. (Id. at p. 9.) Plaintiff’s Requests for Admission, Set One, however, end at Request No. 308. Because Alon Investments’ numerical objection was waived, the response provides no substantive answer to Requests Nos. 36 through 308. Considered as a whole, the proposed response does not substantially comply with section 2033.220.

Floridia served a response captioned as Requests for Admission, Set One, and identifying Set No. One, although its introductory paragraph and internal heading refer to “Set Three.” (Floridia Resp. to RFAs, pp. 1, 3.) The response provides substantive answers to Requests Nos. 1 through 35 and then asserts a single numerical objection to Requests Nos. 36 through 243. (Id. at p. 9.) Because that objection was waived, the response provides no substantive answer to Requests Nos. 36 through 243. Considered as a whole, Floridia’s proposed response does not substantially comply with section 2033.220.

Shapiro’s response is captioned as Requests for Admission, Set Three, and renumbers the requests beginning with Request No. 173. The substance of the requests, however, corresponds to the Requests for Admission, Set Two, at issue in Plaintiff’s Motion. Shapiro provides substantive answers to renumbered Requests Nos. 173 through 208, corresponding to Set Two, Nos. 1 through 36. She then asserts a single numerical objection to renumbered Requests Nos. 209 through 342, corresponding to Set Two, Nos. 37 through 170.

(Shapiro Resp. to RFAs, pp. 3-9.) Shapiro provides no answer to Set Two, Nos. 171 and 172. Because the numerical objection was waived, the response provides no substantive answer to Plaintiff's Set Two, Nos. 37 through 172. Considered as a whole, Shapiro's proposed response does not substantially comply with section 2033.220.

Accordingly, Plaintiff's Motions to Deem Requests for Admission Admitted as to Alon Investments, Florida, and Shapiro are granted. The matters specified in the Requests for Admission at issue in each Motion are deemed admitted. (Code Civ. Proc., § 2033.280, subd. (c).) This ruling is without prejudice to any properly noticed motion under Code of Civil Procedure section 2033.300 to withdraw or amend the admissions.

3. Motions to Compel Interrogatory and Production Responses

As noted above, the actual responses were submitted by Plaintiff with her Reply. Those responses show that Shapiro, Alon Investments, and Florida continued to assert objections notwithstanding the statutory waiver.

A party that fails to timely respond to interrogatories waives all objections, including objections based on privilege and work product, unless relief from waiver is obtained. (Code Civ. Proc., § 2030.290, subd. (a).) The same rule applies to inspection demands. (Code Civ. Proc., § 2031.300, subd. (a).)

The subsequent service of untimely responses does not deprive the Court of authority to decide a pending motion to compel initial responses. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 407-409.)

Shapiro, Alon Investments, and Florida subsequently served responses while continuing to assert objections. (Early Decl. filed 9/3/26, ¶ 7.) Those objections were waived. Unlike Shauly and Alon West Hills, these Defendants did not obtain protective relief limiting the discovery directed to them. (6/29/26 Minute Order.) The Court therefore does not impose through these Motions the numerical limitations ordered on the separately noticed protective-order Motions.

a. Iris
Shapiro

Plaintiff served Shapiro with Special Interrogatories, Set Two, and Requests for Production, Set Two, on March 13, 2026. Shapiro subsequently served responses to the discovery at issue. (Early Decl. filed 9/3/26, ¶ 7.) Defendants contend the subsequent responses render the Motion moot.

The untimely service of responses, however, did not restore objections that had already been waived. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 407-409.) No order relieving Shapiro from waiver has been entered.

Within 60 days, Shapiro shall serve verified, code-compliant responses, without objections, to all Special Interrogatories, Set Two, and Requests for Production, Set Two, at issue in the combined Motion. Shapiro shall concurrently produce all responsive documents in her possession, custody, or control responsive to the Requests for Production at issue.

b. Alon
Investments, LLC

Plaintiff served Alon Investments with Special Interrogatories, Set One, and Requests for Production, Set One, on March 13, 2026. Alon Investments subsequently served responses to the discovery at issue. (Early Decl. filed 9/3/26, ¶ 7.) Defendants contend the subsequent responses render the Motion moot.

The untimely service of responses did not restore objections that had already been waived. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 407-409.) No order relieving Alon Investments from waiver has been entered.

Within 60 days, Alon Investments shall serve verified, code-compliant responses, without objections, to all Special Interrogatories, Set One, and Requests for Production, Set One, at issue in the combined Motion. Alon Investments shall concurrently produce all responsive documents in its possession, custody, or control responsive to the Requests for Production at issue.

Plaintiff also served Alon Investments with Form Interrogatories, General, Set One, on May 11, 2026. (6/15/26 Mot., Proof of Service.) Early declares that Alon Investments subsequently served responses to the Form Interrogatories. (Early Decl. filed 9/3/26, ¶ 7.) Plaintiff, however, submitted a copy of the paper purportedly served as Alon Investments' response that identifies Alon West Hills, LLC, a separate Defendant, as the responding party.

On the record presented, within 60 days, Alon Investments shall serve its own verified, code-compliant responses, without objections, to Form Interrogatories, General, Set One.

c.

Walter Floridia

Plaintiff served Floridia with Special Interrogatories, Set One, and Requests for Production, Set One, on March 13, 2026. Floridia subsequently served responses to the discovery at issue. (Early Decl. filed 9/3/26, ¶ 7.) Defendants contend the subsequent responses render the Motion moot.

The untimely service of responses did not restore objections that had already been waived. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 407-409.) No order relieving Floridia from waiver has been entered.

Within 60 days, Floridia shall serve verified, code-compliant responses, without objections, to all Special Interrogatories, Set One, and Requests for Production, Set One, at issue in the combined Motion. Floridia shall concurrently produce all responsive documents in his possession, custody, or control responsive to the Requests for Production at issue.

Plaintiff also served Floridia with Form Interrogatories, General, Set One, on May 11, 2026. (6/15/26 Mot., Proof of Service.) Early declares that Floridia subsequently served responses and later served verifications. (Early Decl. filed 9/3/26, ¶ 7.) His objections remain waived.

Within 60 days, Floridia shall serve verified, code-compliant responses, without objections, to Form Interrogatories, General,

Set One.

Accordingly, Plaintiff's Combined

Motion to Compel Special Interrogatories and Requests for Production is granted in part. Plaintiff's Combined Motion to Compel Form Interrogatories is granted in part.

4. Sanctions

Plaintiff's requests for issue and evidence sanctions are denied. Code of Civil Procedure sections 2030.290, subdivision (c) and 2031.300, subdivision (c) authorize nonmonetary sanctions upon a subsequent failure to obey an order compelling responses. No such prior order preceded the discovery defaults addressed by these Motions. The Court may not use the general sanctions provisions to override limitations prescribed by the applicable method-specific provisions. (*City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal.5th 46, 75.)

Code of Civil Procedure section 2033.280, subdivision (c) makes monetary sanctions mandatory against the party or attorney whose failure to serve timely responses necessitated the motion. Plaintiff's requested amounts, however, are calculated entirely from the value of her own legal work as a self-represented litigant. (See, e.g., 5/8/26 *Alon Investments Mot.*, pp. 25-26.) A self-represented litigant may not recover attorney fees for her own legal work. (*Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015, 1020.) Plaintiff has not identified any separate recoverable expense incurred as a result of the discovery violations. Plaintiff's monetary-sanction request on the Combined Motion to Compel Special Interrogatories and Requests for Production is likewise based on the value of her own legal work. Plaintiff identifies no separate recoverable expense incurred in connection with that Motion. Accordingly, there is no recoverable monetary amount to award on the showing made. Accordingly, there is no recoverable monetary amount to award on the showing made.

CONCLUSION

Shauly's and Alon West Hills' Motions for Protective Order are GRANTED IN PART. Within 30 days, Plaintiff shall identify the 150 Special Interrogatories, 100 Requests for Admission, and 100 Requests for Production from Discovery Set Two that she elects to pursue against each Defendant.

Plaintiff may not substitute new requests or revise the wording of the requests previously served. Within 60 days after service of Plaintiff's respective selections, Shaully and Alon West Hills shall serve code-compliant responses and concurrently produce responsive documents required by their responses to the selected Requests for Production. Their objections are not waived.

Plaintiff's Motions to Deem Requests for Admission Admitted against Shapiro, Alon Investments, and Florida are granted without prejudice. The matters specified in the Requests for Admission at issue in those Motions are deemed admitted.

Plaintiff's Combined Motion to Compel Special Interrogatories and Requests for Production is granted in part. Within 60 days, Shapiro shall serve verified, code-compliant responses without objections to Special Interrogatories, Set Two, and Requests for Production, Set Two. Within 60 days, Alon Investments and Florida shall each serve verified, code-compliant responses without objections to their respective Special Interrogatories, Set One, and Requests for Production, Set One. Each Defendant shall concurrently produce responsive documents as ordered above.

Plaintiff's Combined Motion to Compel Form Interrogatories is granted in part. Within 60 days, Alon Investments and Florida shall serve verified, code-compliant responses without objections to Form Interrogatories, General, Set One, as ordered above.

Plaintiff's requests for issue and evidence sanctions are denied. No monetary amount is awarded on the showing made.